

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2169

By: Pfeiffer

AS INTRODUCED

An Act relating to state government; creating the Oklahoma Fusion Center; separating the Oklahoma Counter Terrorism Intelligence Center from the Department of Public Safety; transferring all funds and property to new agency; allowing personnel to retain employment positions and status; authorizing agency to contract with the Office of Management and Enterprise Services for payroll and administrative services; directing the Office of Management and Enterprise Services to coordinate the transfer of property and personnel; abolishing certain division within the Department of Public Safety upon completion of transfer; creating the Oklahoma Fusion Center Commission; providing for membership; requiring appointments within certain time frame; stating manner by which members serve their terms; designating the Executive Director as ex officio member and Secretary; providing for the selection of a chair and vice-chair; providing quorum requirement; providing exemption from dual office-holding prohibition; stating powers and duties of the Commission; allowing reimbursement for certain expenses; establishing meeting and vacancy requirements; providing for clerical staff and meeting space; directing the Commission to comply with the Oklahoma Open Meeting Act, Oklahoma Open Records Act, and the Administrative Procedures Act; stating powers and duties of the Oklahoma Fusion Center; providing for the appointment of an Executive Director; stating qualifications; authorizing the appointment of assistants and personnel; creating the Oklahoma Fusion Center Revolving Fund; providing sources of funds; providing for use of funds;

1 prescribing procedures for expenditures; providing
2 for codification; and providing an effective date.

3
4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 52 of Title 74, unless there is
7 created a duplication in numbering, reads as follows:

8 A. There is hereby created an agency of state government to be
9 designated the Oklahoma Fusion Center.

10 B. Beginning November 1, 2025, the Oklahoma Counter Terrorism
11 Intelligence Center shall cease to be under the control of or in any
12 manner affiliated with the Department of Public Safety and shall
13 become a separate and distinct agency of the state, to be known as
14 the Oklahoma Fusion Center. All unexpended funds, property,
15 records, equipment, software, software licenses, personnel, grants,
16 and outstanding financial obligations and encumbrances related to
17 the Oklahoma Counter Terrorism Intelligence Center shall be
18 transferred to the Oklahoma Fusion Center. All personnel shall
19 retain their employment positions and status as unclassified
20 employees, as well as any leave, sick, and annual time earned, and
21 any retirement and longevity benefits which have accrued during
22 their tenure with the Oklahoma Counter Terrorism Intelligence
23 Center.

1 C. The Oklahoma Fusion Center may contract with the Office of
2 Management and Enterprise Services for payroll or other
3 administrative services.

4 D. The Office of Management and Enterprise Services is hereby
5 directed to coordinate the transfer of funds, allotments, purchase
6 orders, outstanding financial obligations, and encumbrances provided
7 for in subsection B of this section. The transfer of personnel
8 shall also be coordinated with the Office of Management and
9 Enterprise Services.

10 E. The Oklahoma Fusion Center is authorized to rent, lease, or
11 own appropriate office space and property to conduct its business.

12 F. The division within the Department of Public Safety known as
13 the Oklahoma Counter Terrorism Intelligence Center shall be
14 abolished by the Office of Management and Enterprise Services after
15 the transfer is completed.

16 SECTION 2. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 52.1 of Title 74, unless there
18 is created a duplication in numbering, reads as follows:

19 A. There is hereby created the Oklahoma Fusion Center
20 Commission, which shall be an advisory body to the Executive
21 Director of the Oklahoma Fusion Center.

22 B. The Oklahoma Fusion Center Commission shall consist of
23 twelve (12) members as follows:

24 1. Four of the members shall be:

- a. the Commissioner of Public Safety or designee,
- b. the Director of the Oklahoma State Bureau of Investigation or designee,
- c. the Director of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control or designee, and
- d. the Director of Intelligence of the Department of Corrections or designee; and

2. Eight of the members shall be:

- a. two members appointed by the Oklahoma Association of Chiefs of Police, one of whom shall be a chief of police of a municipality with a population over forty thousand (40,000), as determined by the latest Federal Decennial Census, and one of whom shall be a chief of police of a municipality with a population under forty thousand (40,000), as determined by the latest Federal Decennial Census,
- b. two members appointed by the Oklahoma Sheriffs' Association, one of whom shall be a sheriff of a county with a population over forty thousand (40,000), as determined by the latest Federal Decennial Census, and one of whom shall be a sheriff of a county with a population under forty thousand (40,000), as determined by the latest Federal Decennial Census,

- c. one member who is a district attorney selected by the District Attorneys Council,
- d. one member appointed by the Speaker of the Oklahoma House of Representatives, who represents a tribal law enforcement entity of one of the Five Civilized Tribes whose primary tribal headquarters are located in this state,
- e. one member appointed by the Speaker Pro Tempore of the Oklahoma State Senate, who represents a tribal law enforcement entity of one of the Five Civilized Tribes whose primary tribal headquarters are located in this state, and
- f. one member appointed by the Governor, who represents a tribal law enforcement entity of a federally recognized American Indian Tribe or nation whose primary tribal headquarters are located in this state.

C. Appointments to the initial Oklahoma Fusion Center

Commission shall be made within forty-five (45) days of the effective date of this act.

D. Each member of the Oklahoma Fusion Center Commission shall serve at the pleasure of their appointing authority.

E. The Executive Director of the Oklahoma Fusion Center appointed by the Commission shall be an ex officio member of the Commission and shall act as Secretary. A chair and vice-chair shall

1 be elected annually from the membership of the Oklahoma Fusion
2 Center Commission. A majority of the members of the Commission
3 shall constitute a quorum for the transaction of business and for
4 taking any official action. Official action of the Commission must
5 have a favorable vote by a majority of the members present.

6 F. Members who serve on the Commission shall be exempt from
7 dual office-holding prohibitions pursuant to Section 6 of Title 51
8 of the Oklahoma Statutes.

9 G. The Oklahoma Fusion Center Commission shall be the
10 rulemaking body for the Oklahoma Fusion Center and shall have the
11 power and duty to:

12 1. Establish the policies of the Oklahoma Fusion Center;

13 2. Adopt and promulgate rules as necessary and appropriate to
14 carry out the duties and responsibilities of the Oklahoma Fusion
15 Center;

16 3. Appoint an Executive Director and other staff for its
17 operation; and

18 4. Prepare a budget for expenditures necessary for the
19 Commission and the Oklahoma Fusion Center.

20 H. Members appointed pursuant to subsection B of this section
21 shall serve without compensation but shall be reimbursed for their
22 actual and necessary expenses incurred in the performance of their
23 duties in accordance with the provisions of the State Travel
24 Reimbursement Act.

1 I. The Oklahoma Fusion Center Commission shall meet as often as
2 necessary at a place and time to be fixed by the Commission.
3 Special meetings may be called by the chair or by four members of
4 the Commission by delivery of written notice to each member of the
5 Commission.

6 J. Any vacancy occurring on the Oklahoma Fusion Center
7 Commission shall be filled for the unexpired term of office in the
8 same manner as provided for in subsection B of this section.

9 K. The Oklahoma Fusion Center shall provide clerical staff to
10 perform designated duties of the Oklahoma Fusion Center Commission.
11 The Oklahoma Fusion Center shall also provide space for meetings of
12 the Commission.

13 L. Except as provided in Section 24A.28 of Title 51 of the
14 Oklahoma Statutes, the Oklahoma Fusion Center Commission shall act
15 in accordance with the provisions of the Oklahoma Open Records Act
16 and shall be subject to the provisions of the Oklahoma Open Meeting
17 Act and the Administrative Procedures Act.

18 SECTION 3. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 52.2 of Title 74, unless there
20 is created a duplication in numbering, reads as follows:

21 The Oklahoma Fusion Center shall have the power and duty to:

22 1. Establish and maintain an information clearinghouse in order
23 to accept and appropriately process information provided by law
24

1 enforcement agencies, public safety agencies, private sector
2 agencies, and concerned citizens;

3 2. Provide informative reports and assessments, both strategic
4 and tactical, for Homeland Security initiatives;

5 3. Provide real-time support to law enforcement and public
6 safety agencies;

7 4. Consolidate information and data on suspicious activities
8 and threats from all jurisdictions within Oklahoma;

9 5. Facilitate communication and collaboration with
10 multidisciplinary partners including local, state, and federal law
11 enforcement and nongovernmental organizations; and

12 6. Provide early warning of incidents at the local, regional,
13 and state levels.

14 SECTION 4. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 52.3 of Title 74, unless there
16 is created a duplication in numbering, reads as follows:

17 A. The Executive Director of the Oklahoma Fusion Center shall
18 be appointed by the Oklahoma Fusion Center Commission. The
19 Executive Director of the Oklahoma Fusion Center shall have a
20 bachelor's degree from an accredited college or university and at
21 least five (5) years of experience in law enforcement. The
22 Executive Director shall be subject to an Oklahoma and national
23 criminal history background check conducted by the Oklahoma State
24 Bureau of Investigation prior to appointment by the Commission.

1 B. The Executive Director shall receive a law enforcement
2 commission by either the Oklahoma State Bureau of Investigation, the
3 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, or
4 the Oklahoma Department of Public Safety.

5 C. The Executive Director may appoint necessary assistants and
6 other personnel to perform the work of the agency and may prescribe
7 their titles and duties and fix their compensation.

8 SECTION 5. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 52.4 of Title 74, unless there
10 is created a duplication in numbering, reads as follows:

11 There is hereby created in the State Treasury a revolving fund
12 for the Oklahoma Fusion Center to be designated the "Oklahoma Fusion
13 Center Revolving Fund". The fund shall be a continuing fund, not
14 subject to fiscal year limitations, and shall consist of any monies
15 received from gifts, bequests, devises, contributions or grants,
16 public or private, including federal funds unless otherwise
17 prohibited by federal law or regulation, and receipts from any other
18 source. All monies accruing to the credit of said fund are hereby
19 appropriated and may be budgeted and expended by the Oklahoma Fusion
20 Center for general operations of the agency. Expenditures from said
21 fund shall be made upon warrants issued by the State Treasurer
22 against claims filed as prescribed by law with the Director of the
23 Office of Management and Enterprise Services for approval and
24 payment.

SECTION 6. This act shall become effective November 1, 2025.

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